

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 6, 2026, AT 8:30 A.M.

When a complaint is filed in an action to recover damages for personal injury or wrongful death, the defendant may at any time request a statement setting forth the nature and amount of damages being sought. The request shall be served upon the plaintiff, who shall serve a responsive statement as to the damages within 15 days. In the event that a response is not served, the defendant, on notice to the plaintiff, may petition the court in which the action is pending to order the plaintiff to serve a responsive statement.
(Code Civ. Proc., § 425.11, subd. (b).)

Plaintiff has not provided a statement of damages.

To determine whether a claim is for personal injury, courts “should look to the nature of the tort rather than the type or extent of damages pled.” (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 755 [internal quotation marks omitted].)

Here, plaintiff’s alleged causes of action against defendant for assault and battery constitute claims for personal injury because the nature of the torts are for defendant’s alleged striking of plaintiff’s body that caused “severe mental and emotional distress, including but not limited to humiliation, mental anguish, anxiety, worry, nervousness, fright, and physical distress.” Accordingly, a statement of damages is proper here where, as here, the complaint seeks to recover damages for personal injuries.

Defendant’s requests for damages fits within the categories of information included the mandatory judicial council form CIV-050.

Accordingly, defendant’s motion is granted. Plaintiff shall complete and provide to defendant a completed statement of damages on judicial council form CIV-050 within 15 days after service of the order after hearing.

6. S-CV-0056811 AKANA, KENT v. NATH, PRANAY

Plaintiff’s Motion for Preliminary Injunction

Preliminary Matters

The court declines to consider the declarations of Scott Shaw and James Filippi and any exhibits attached thereto filed in connection with plaintiff’s reply papers because new evidence is not permitted in reply papers.

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Ruling on Motion

Plaintiff moves for a preliminary injunction that requires the following

1. Enjoining Defendants from maintaining the Oregon ash tree located immediately adjacent to the parties' shared boundary line on Defendants' property (the "Subject Tree"), and any associated root system or overhanging limbs, in a manner that allows further encroachment onto Plaintiff's property or further damage to Plaintiff's fence, concrete, drainage, HVAC slab, roofline, or other improvements;
2. Ordering Defendants, within a time certain to be set by the Court, to promptly apply for and diligently pursue all permits and approvals required to remove the Subject Tree and abate the encroaching roots;
3. Ordering Defendants, upon issuance of the required permits and within a time certain to be set by the Court, to cause the Subject Tree to be removed by a properly licensed and qualified contractor or arborist and to take such reasonably necessary steps as are required to prevent regrowth and further root encroachment;
4. Ordering Defendants, pending completion of removal and final abatement, to undertake such reasonable interim measures as the Court deems necessary to prevent additional damage to Plaintiff's property, including abatement of encroaching limbs and such other temporary protective measures as are feasible and lawful without materially increasing the risk of tree failure.

Courts must evaluate two interrelated factors to determine whether to issue a preliminary injunction: "(1) the likelihood that the plaintiff will prevail on the merits at trial, and (2) the relative interim harm to the parties from the issuance or nonissuance of the injunction, that is, the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the preliminary injunction is issued." (Code Civ. Proc., § 526, subd. (a)(1)–(3); *SB Liberty, LLC v. Isla Verde Assn., Inc.* (2013) 217 Cal.App.4th 272, 280.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (2d Dist. 1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (2d Dist. 1984) 151 Cal.App.3d 1177.)

Here, the first factor weighs against plaintiff as it does not appear he is likely to prevail on the merits of his causes of action for private nuisance, trespass, and negligence. There is insufficient evidence that a tree on defendants' property caused

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plaintiff's alleged damages to his property. Nor is there sufficient evidence to establish defendants breached a duty to plaintiff.

Even if the court considered the improper new evidence submitted with the reply papers and found the first factor weighs in favor of plaintiff—which it does not—the second factor nonetheless weighs greatly against plaintiff. The interim harm that plaintiff is likely to sustain if the injunction is denied is potentially additional damage to his fence and concrete. On the other hand, if the injunction is granted then defendants will be forced to remove a tree that is the center of the parties' dispute without any adjudication about whether the tree is the source of the alleged damages, whether there are alternative means to abate the issues sans complete removal, and if defendants ultimately prevail they will not be able to replace the tree.

Accordingly, the plaintiff's motion for preliminary injunction is denied.